

IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), GURUGRAM
CIVIL SUIT NO. 612 OF 2025

Karan Vohra

... *PLAINTIFF*

VERSUS

Manpreet Sidhu

... *DEFENDANT*

WRITTEN STATEMENT ON BEHALF OF THE DEFENDANT

1. Save as expressly admitted hereinafter, the Defendant denies each and every allegation made in the Plaint as if set out herein and denied seriatim.
2. The Defendant admits ownership of the suit property vide registered Sale Deed dated 12.03.2019 (Ex. P-3), and states that he has held clear, marketable and unencumbered title thereto at all material times.
3. The Defendant admits execution of the Agreement to Sell dated 05.10.2024 (Ex. P-1) but states that time was of the essence and the Plaintiff failed to tender the balance consideration on the due date, namely 05.04.2025.
4. The Defendant states that although the Agreement to Sell does not contain an express clause declaring time to be of the essence, the fixing of a definite and certain date for payment of the substantial balance consideration, linked to simultaneous execution and registration of the sale deed, shows that time was intended by the parties to be essential to the bargain.
5. The Defendant states that the Plaintiff's bank loan sanction dated 10.02.2025 (Ex. P-7), though obtained prior to the due date, was for the limited purpose of arranging finance and did not, without more, constitute readiness and willingness in the manner contemplated by Section 16(c) of the Specific Relief Act, 1963, absent tender of the amount or unequivocal communication of readiness to complete.
6. The Defendant states that on or about 15.03.2025 the Plaintiff sought an extension of time for reasons attributable to the Plaintiff's own financing arrangements, and the Defendant, purely as a matter of accommodation and without any change to the terms of the Agreement, orally indicated a willingness to allow some latitude; no separate writing was drawn up to record this oral understanding, and the Defendant is not in a position to produce any document evidencing the same beyond his own recollection.
7. The Defendant states that the earnest money of Rs. 57,00,000 is liable to forfeiture on account of the Plaintiff's default in tendering the balance consideration within the time contemplated under the Agreement.
8. The Defendant denies any intention on his part to sell the suit property to a third party and states that his reply dated 10.05.2025 to the Plaintiff's legal notice has been misconstrued; the reply merely reserved the Defendant's rights in view of the Plaintiff's own default and did not evidence any dealing with a third party.
9. Without prejudice to the foregoing and in the alternative, the Defendant denies having executed any Agreement to Sell with the Plaintiff in the terms alleged and puts the Plaintiff to strict proof thereof.
10. The Defendant denies that the Plaintiff has at any point been ready and willing to perform his

part of the contract and denies that the Plaintiff is entitled to a decree of specific performance or to any other relief claimed in the Plaintiff.

11. In the further alternative and without prejudice to the foregoing, the Defendant states that even if any relief were to be granted, the Plaintiff would at best be entitled to a bare refund of the earnest money paid, without interest, having regard to the Plaintiff's own delay and default.
12. The suit is misconceived, devoid of merit and liable to be dismissed with costs.

VERIFICATION

I, the Defendant above named, verify that the contents of paragraphs 1 to 12 above are true to my knowledge.

Verified at Gurugram on this the 18th day of July, 2025.

Defendant
(Manpreet Sidhu)
Ms. Simran Bakshi, Advocate for the Defendant
Enrolment No. HAR/3105/2015